EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

DECISION

Application no. 38744/11
LYUBLINO LOCAL CHURCH OF EVANGELICAL CHRISTIANS and Aleksandr Vasilyevich FEDICHKIN
against Russia

The European Court of Human Rights (Third Section), sitting on 26 September 2017 as a Committee composed of:

Luis López Guerra, *President,*
Dmitry Dedov,
Jolien Schukking, *judges,*

and Fatoş Aracı, *Deputy Section Registrar,*

Having regard to the above application lodged on 20 June 2011,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The applicants are the Lyublino Local Church of Evangelical Christians (*Люблинская поместная церковь евангельских христиан*), a local religious organisation established in 1992 in Moscow ("the applicant church"), and its pastor, Mr Aleksandr Vasilyevich Fedichkin, a Russian national born in 1951 and living in Moscow. They were represented before the Court by Mr R. Maranov, a lawyer practising in Moscow.

The applicants complained under Articles 9 and 11 of the Convention about the Russian authorities' decision to strip the applicant church of its legal-entity status for its failure to notify a change in its banking details to the tax authorities. The final decision was given by the Moscow City Court on 20 December 2010.

Following communication of the case to the Russian Government, who were represented initially by Mr G. Matyushkin, the Representative of the Russian Federation to the European Court of Human Rights, and then by his successor in that office, Mr M. Galperin, it transpired that on 6 December

2011 the Constitutional Court had granted Mr Fedichkin's complaint. The proceedings had been re-opened and on 15 June 2012 the Simonovskiy District Court ordered the tax authority to reinstate the legal-entity status of the applicant church. On 25 December 2012 that decision was given effect.

The applicants did not submit their observations on the admissibility and merits of the case within the established time-limit, despite the Court's repeated reminders, which were sent by registered mail and electronic transmission to their representative before the Court.

THE LAW

The Court considers that, in these circumstances, the applicants may be regarded as no longer wishing to pursue their application, within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, having regard to the subsequent developments in the case, the Court finds no special circumstances regarding respect for human rights within the meaning of Article 37 § 1 *in fine* which require the continued examination of the case.

In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 19 October 2017.

Fatoş Aracı
Deputy Registrar

Luis López Guerra
President